

lay down that where the failure of the legacy arises from any event which the testator might reasonably have contemplated, as, the death of the legatee in his lifetime, then the legacy should sink for the benefit of the devisee: but that where the legacy is raisable in the event which has happened, and the legacy is only not paid because the policy of the law, in spite of the intention, forbids it, as in the case of a legacy to a charity, there the legacy was in fact never given to the devise, and a trust should result for the benefit of the heir. The subject, as the matter now stands, is in a very unsatisfactory state.

*Fifthly. The interest that would have resulted may be disposed of by will.* — It has been stated in general terms, that, in the cases we have mentioned, a trust will result to the *settlor or his real or personal representative*, but the doctrine must be received with at least this qualification, that the interest which would have resulted is not otherwise disposed of by the settlor himself.

Any interest that would have resulted may of course be given away from the settlor's representative, by a *particular and specific* devise or bequest; it remains only to inquire what is the effect of certain *general* expressions.

**Construction of the word "residue" in real estate.** — With respect to a testator's realty, the heir "shall sit in the seat of his ancestor," unless the disinheritance be expressed or clearly implied. The word "residue," therefore, had, before the late Wills Act, received in devises a strict and narrow construction, and was held to mean, not all that the testator had not actually disposed of, but only so much of which he had shown no intention of disposing. Thus, if lands had been devised upon trust to raise 5000*l.* for a charity, the residue to A.(a), or upon trust to raise 5000*l.* for a charity, with a general devise "of all the residue of the testator's real estate, whatsoever and wheresoever" (b), in either

(a) *Hutcheson v. Hammond*, 3 B. C. C. 128; *Page v. Leapingwell*, 18 Ves. 463; *Collins v. Wakeman*, 2 Ves. jun. 683; *Cruse v. Barley*, 3 P. W. 20; *Jones v. Mitchell*, 1 S. & S. 293; *Sprigg v. Sprigg*, 2 Vern. 394, *per*

*Cur.*; *Cooke v. Stationers' Company*, 3 M. & K. 264, *per Cur.*; *Anon. case*, 1 Com. 345.

(b) *Goodright v. Opie*, 8 Mod. 123; *Wright v. Hall*, Fort. 182; *S. C.* 8 Mod. 222; *Roe v. Fludd*, Fort. 184;